



General Assembly

February Session, 2026

Raised Bill No. 297

LCO No. 1956



Referred to Committee on JUDICIARY

Introduced by:
(JUD)

***AN ACT CONCERNING COURT PROCEEDINGS INVOLVING A CHILD
OR YOUTH WHO IS ALLEGED TO HAVE BEEN UNCARED FOR,
NEGLECTED OR ABUSED.***

Be it enacted by the Senate and House of Representatives in General
Assembly convened:

1 Section 1. Subsection (j) of section 46b-129 of the 2026 supplement to
2 the general statutes is repealed and the following is substituted in lieu
3 thereof (*Effective October 1, 2026*):

4 (j) (1) For the purposes of this subsection and subsection (k) of this
5 section, (A) "permanent legal guardianship" means a permanent
6 guardianship, as defined in section 45a-604, (B) "caregiver" means (i) a
7 fictive kin caregiver, as defined in section 17a-114, who is caring for a
8 child, (ii) a relative caregiver, as defined in section 17a-126, who is caring
9 for a child, or (iii) a person who is licensed or approved to provide foster
10 care pursuant to section 17a-114, who is caring for a child, and (C) "trial
11 home visit" means the temporary placement of a child or youth
12 committed to the Commissioner of Children and Families in the home
13 of such child's or youth's parent or guardian.

14 (2) Upon finding and adjudging that any child or youth is uncared

15 for, neglected or abused the court may (A) commit such child or youth
 16 to the Commissioner of Children and Families, and such commitment
 17 shall remain in effect until further order of the court, except that such
 18 commitment may be revoked or parental rights terminated at any time
 19 by the court; (B) vest such child's or youth's legal guardianship in any
 20 private or public agency that is permitted by law to care for neglected,
 21 uncared for or abused children or youths or with any other person or
 22 persons found to be suitable and worthy of such responsibility by the
 23 court, including, but not limited to, any relative of such child or youth
 24 by blood or marriage; (C) vest such child's or youth's permanent legal
 25 guardianship in any person or persons found to be suitable and worthy
 26 of such responsibility by the court, including, but not limited to, any
 27 relative of such child or youth by blood or marriage in accordance with
 28 the requirements set forth in subdivision (6) of this subsection; or (D)
 29 place the child or youth in the custody of the parent or guardian with
 30 protective supervision by the Commissioner of Children and Families
 31 subject to conditions established by the court. Upon issuing any order
 32 pursuant to this section, the court shall order specific steps that the
 33 parent must take to facilitate the return of the child or youth to the
 34 custody of such parent or to maintain the child or youth in the parent's
 35 custody while under an order of protective supervision.

36 (3) If the court approves a permanency plan filed with the court that
 37 recommends the reunification of the child or youth with such child's or
 38 youth's parent or guardian, the Commissioner of Children and Families
 39 may, with the agreement of all parties of record, authorize a trial home
 40 visit prior to the revocation of the order of commitment pertaining to
 41 such child or youth. The commissioner shall (A) provide the court and
 42 all parties of record written notice of the commissioner's intent to
 43 authorize any such trial home visit not later than fifteen days prior to
 44 such authorization; (B) create a trial home visit plan that shall be
 45 provided to all parties of record, and include, but need not be limited to,
 46 announced and unannounced visits to the home by the department and
 47 the provision of any services during such trial home visit that the

48 commissioner determines are necessary to promote the child's or
49 youth's well-being; and (C) file a motion for revocation of commitment
50 not later than thirty days after the date such trial home visit commences,
51 unless the commissioner removes the child or youth from the home
52 prior to that time pursuant to its responsibility and authority over
53 children and youth committed to the care and custody of the
54 commissioner. A trial home visit authorized under this section shall
55 remain in effect until the commissioner removes such child or youth
56 pursuant to subparagraph (C) of this subdivision or the court grants a
57 motion for revocation of commitment filed pursuant to said
58 subparagraph.

59 (4) If the court determines that the commitment should be revoked
60 and the child's or youth's legal guardianship or permanent legal
61 guardianship should vest in someone other than the respondent parent,
62 parents or former guardian, or if parental rights are terminated at any
63 time, there shall be a rebuttable presumption that an award of legal
64 guardianship or permanent legal guardianship upon revocation to, or
65 adoption upon termination of parental rights by, any caregiver or
66 person or who is, pursuant to an order of the court, the temporary
67 custodian of the child or youth at the time of the revocation or
68 termination, shall be in the best interests of the child or youth and that
69 such caregiver is a suitable and worthy person to assume legal
70 guardianship or permanent legal guardianship upon revocation or to
71 adopt such child or youth upon termination of parental rights. The
72 presumption may be rebutted by a preponderance of the evidence that
73 an award of legal guardianship or permanent legal guardianship to, or
74 an adoption by, such caregiver would not be in the child's or youth's
75 best interests and such caregiver is not a suitable and worthy person.
76 [The court shall order specific steps that the parent must take to facilitate
77 the return of the child or youth to the custody of such parent.]

78 (5) The commissioner shall be the guardian of such child or youth for
79 the duration of the commitment, provided the child or youth has not
80 reached the age of eighteen years, or until another guardian has been

81 legally appointed, and in like manner, upon such vesting of the care of
82 such child or youth, such other public or private agency or individual
83 shall be the guardian of such child or youth until such child or youth
84 has reached the age of eighteen years or, in the case of a child or youth
85 in full-time attendance in a secondary school, a technical education and
86 career school, a college or a state-accredited job training program, until
87 such child or youth has reached the age of twenty-one years or until
88 another guardian has been legally appointed. The commissioner may
89 place any child or youth so committed to the commissioner in a suitable
90 foster home or in the home of a fictive kin caregiver, relative caregiver,
91 or in a licensed child-caring institution or in the care and custody of any
92 accredited, licensed or approved child-caring agency, within or without
93 the state, provided a child shall not be placed outside the state except
94 for good cause and unless the parent or guardian of such child are
95 notified in advance of such placement and given an opportunity to be
96 heard, or in a receiving home maintained and operated by the
97 commissioner. When placing such child or youth, the commissioner
98 shall provide written notification of the placement, including the name,
99 address and other relevant contact information relating to the
100 placement, to any attorney or guardian ad litem appointed to represent
101 the child or youth pursuant to subsection (c) of this section. The
102 commissioner shall provide written notification to such attorney or
103 guardian ad litem of any change in placement of such child or youth,
104 including a hospitalization or respite placement, and if the child or
105 youth absconds from care. The commissioner shall provide such written
106 notification not later than ten business days prior to the date of change
107 of placement in a nonemergency situation, or not later than two business
108 days following the date of a change of placement in an emergency
109 situation. In placing such child or youth, the commissioner shall, if
110 possible, select a home, agency, institution or person of like religious
111 faith to that of a parent of such child or youth, if such faith is known or
112 may be ascertained by reasonable inquiry, provided such home
113 conforms to the standards of the commissioner and the commissioner
114 shall, when placing siblings, if possible, place such children together. At

115 least ten days prior to transferring a child or youth to a second or
116 subsequent placement, the commissioner shall give written notice to
117 such child or youth and such child's or youth's attorney of said
118 commissioner's intention to make such transfer, unless an emergency or
119 risk to such child's or youth's well-being necessitates the immediate
120 transfer of such child or youth and renders such notice impossible.
121 Upon the issuance of an order committing the child or youth to the
122 commissioner, or not later than sixty days after the issuance of such
123 order, the court shall determine whether the department made
124 reasonable efforts to keep the child or youth with his or her parent or
125 guardian prior to the issuance of such order and, if such efforts were not
126 made, whether such reasonable efforts were not possible, taking into
127 consideration the child's or youth's best interests, including the child's
128 or youth's health and safety.

129 (6) (A) A youth who is committed to the commissioner pursuant to
130 this subsection and has reached eighteen years of age may remain in the
131 care of the commissioner, by consent of the youth and provided the
132 youth has not reached the age of twenty-one years of age, if the youth is
133 (i) enrolled in a full-time approved secondary education program or an
134 approved program leading to an equivalent credential; (ii) enrolled full
135 time in an institution which provides postsecondary or vocational
136 education; or (iii) participating full time in a program or activity
137 approved by said commissioner that is designed to promote or remove
138 barriers to employment. The commissioner, in the commissioner's
139 discretion, may waive the provision of full-time enrollment or
140 participation based on compelling circumstances. Not more than one
141 hundred twenty days after the youth's eighteenth birthday, the
142 department shall file a motion in the superior court for juvenile matters
143 that had jurisdiction over the youth's case prior to the youth's eighteenth
144 birthday for a determination as to whether continuation in care is in the
145 youth's best interest and, if so, whether there is an appropriate
146 permanency plan. The court, in its discretion, may hold a hearing on
147 said motion.

148 (B) Any youth who was committed to the commissioner pursuant to
149 this subsection and, having declined to consent to remain in the care of
150 the commissioner, left such care once such youth turned eighteen years
151 of age, may request, in a form and manner prescribed by the
152 commissioner, not later than sixty days prior to the date such youth
153 turns twenty-one years of age, to reenter into the care of the
154 commissioner. Upon receipt of such request, the commissioner shall
155 determine whether such youth meets the requirements described in
156 subparagraph (A) of this subdivision. If the commissioner determines
157 that such youth meets such requirements, the department may request
158 that such youth enter into a written agreement governing the terms of
159 his or her voluntary reentry into the care of the commissioner and
160 permit such youth to reenter care. Not more than sixty days after the
161 execution of such agreement, the commissioner shall file a motion in the
162 superior court for juvenile matters that had jurisdiction over the youth's
163 case prior to the youth's eighteenth birthday for a determination as to
164 whether reentry into care is in the youth's best interest and, if so,
165 whether there is an appropriate permanency plan. The court may hold
166 a hearing on said motion.

167 (7) Prior to issuing an order for permanent legal guardianship, the
168 court shall provide notice to each parent that the parent may not file a
169 motion to terminate the permanent legal guardianship, or the court shall
170 indicate on the record why such notice could not be provided, and the
171 court shall find by clear and convincing evidence that the permanent
172 legal guardianship is in the best interests of the child or youth and that
173 the following have been proven by clear and convincing evidence:

174 (A) One of the statutory grounds for termination of parental rights
175 exists, as set forth in subsection (j) of section 17a-112, or the parents have
176 voluntarily consented to the establishment of the permanent legal
177 guardianship;

178 (B) Adoption of the child or youth is not possible or appropriate;

179 (C) (i) If the child or youth is at least twelve years of age, such child
 180 or youth consents to the proposed permanent legal guardianship, or (ii)
 181 if the child is under twelve years of age, the proposed permanent legal
 182 guardian is: (I) A relative, (II) a caregiver, or (III) already serving as the
 183 permanent legal guardian of at least one of the child's siblings, if any;

184 (D) The child or youth has resided with the proposed permanent
 185 legal guardian for at least a year; and

186 (E) The proposed permanent legal guardian is (i) a suitable and
 187 worthy person, and (ii) committed to remaining the permanent legal
 188 guardian and assuming the right and responsibilities for the child or
 189 youth until the child or youth attains the age of majority.

190 (8) An order of permanent legal guardianship may be reopened and
 191 modified and the permanent legal guardian removed upon the filing of
 192 a motion with the court, provided it is proven by a fair preponderance
 193 of the evidence that the permanent legal guardian is no longer suitable
 194 and worthy. A parent may not file a motion to terminate a permanent
 195 legal guardianship. If, after a hearing, the court terminates a permanent
 196 legal guardianship, the court, in appointing a successor legal guardian
 197 or permanent legal guardian for the child or youth shall do so in
 198 accordance with this subsection.

This act shall take effect as follows and shall amend the following sections:		
Section 1	October 1, 2026	46b-129(j)

Statement of Purpose:

To restructure statutory provisions concerning court proceedings involving a child or youth who is alleged to have been uncared for, neglected or abused.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]